Forum:	Human Rights Council (HRC)
Issue:	Addressing the Issue of ensuring protection against discrimination based on sexual orientation while upholding international human rights obligations
Author:	Athanasios Theodorou
Position:	President

Personal Introduction

Honorable Delegates,

I would like to welcome you to the 1st Moraitis School MUN! My name is Athanasios Theodorou and I'm an upcoming IB1 student at Platon School. I am pleased to announce that I will be your President for this year's Human Rights Council (HRC), specialising in the first topic, "Ensuring protection against discrimination based on sexual orientation while upholding international human rights obligations". I believe this topic is of immense importance, as it has been a critical concern of the international community for the past few years, one that requires a deliberate resolution, so that discrimination based on sexual orientation may finally be eliminated and basic human rights can be awarded to all human beings, regardless of their characteristics and preferences.

However, none of that can be achieved without effective leadership within the United Nations and the Human Rights Council. As human rights violations plague modern society, those are the institutions which must stand strong against discrimination, especially due to sexual orientation and/or gender attributes. The MUN community was built to prepare young leaders to face such situations with the integrity of true diplomats and ensure that the ever-evolving scene of international politics will never lack effective leadership. Thank you for being a part of the MUN community and growing alongside it, future leaders of our world.

That being said, I would like to present you with some disclaimers about this guide. Although this Study Guide engages the topic effectively and stands on thorough research, I strongly urge you to also perform your own external research. I suggest you use the footnoted links that you will find throughout the Guide, where you will be able to access more research material in order to understand the topic in-depth.

Should you have any questions while reading the study guide, please do not hesitate to contact me. My email is teothanos10@gmail.com.

Kind regards,

Athanasios Theodorou

Introduction

Discrimination, in the context of it being based on sexual orientation, is the act of being biased against and/or prejudiced against a person's traits, personality and attributes, among others, due to their sexual orientation, most commonly when they do not follow the sexual and/or gender norms of a specific region or culture. Sanctioning and/or disqualifying an individual from activities and/or rights that others may have access to, including freedom of speech, health services, etc., due to said discrimination can be characterised as a breach of their fundamental human rights.

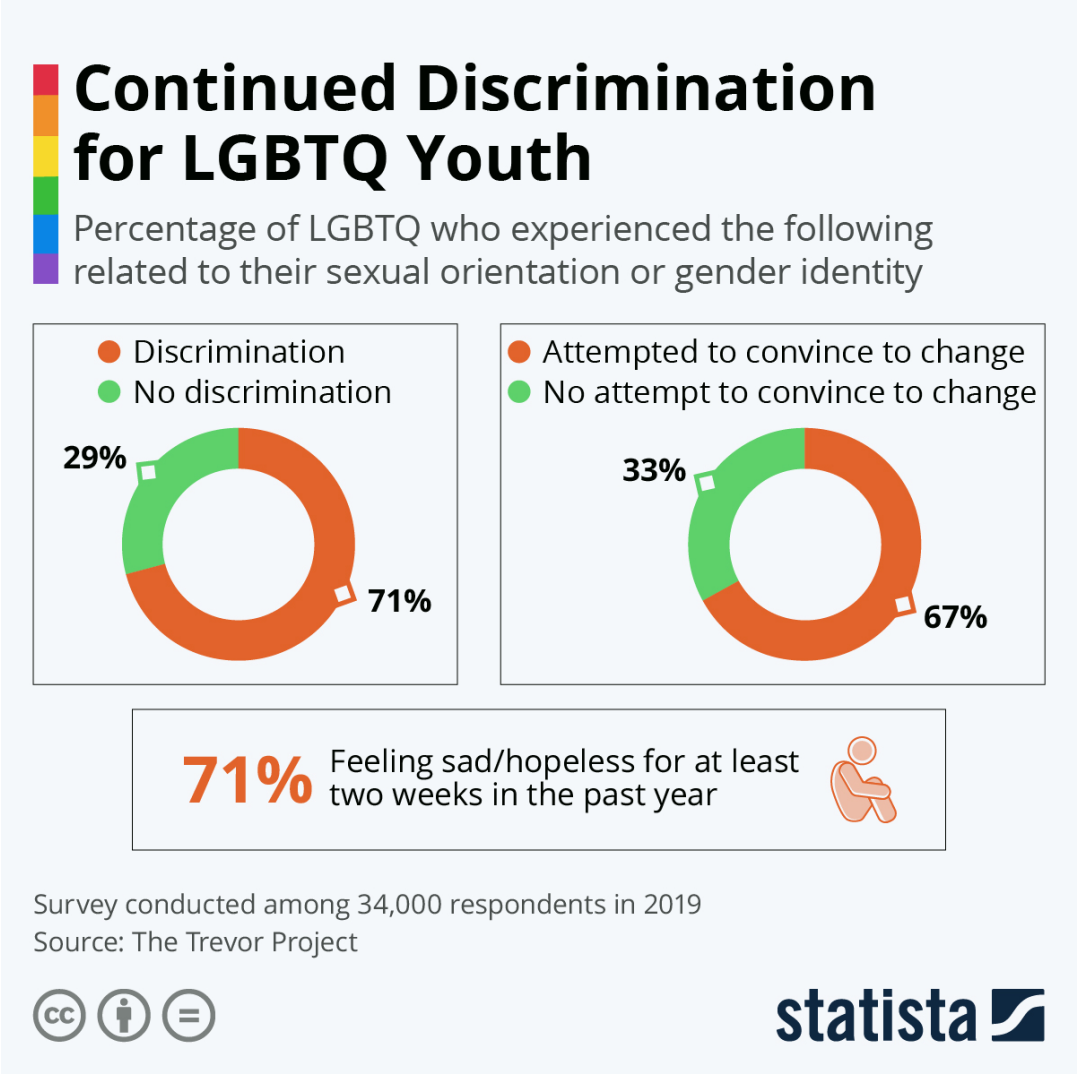


Figure 1: Continued Discrimination for LGBTQ Youth (Source: Statista[1])

[1] Roper, W. (2020, June 11). Continued discrimination for Lgbtq youth. Statista Daily Data; Statista. https://www.statista.com/chart/21975/discrimination-against-lgbtq-youth/?srsltid=afmboopvqnav71zavliziixj0cpagz6_vhxgqi5wpueqh4pnutpgnlnx

Throughout history, discrimination has increased as individuals became more open about their sexual orientation and preferences, but it has decreased as the international community and governments became more accepting of such traits and behavior. As people became more expressive of their sexual orientation, after the successful struggle for women to gain their rights, in the 20th century, the international community, especially after two World Wars and the Cold War that followed, had become more conservative and unable to accept the existence of people with a different sexual orientation than the norm of that era, heterosexuality.

Although that was the result of a plethora of factors, including a lack of education on the matter, a lack of legal recognition and an unfavorable overall societal perception, the cause for the elimination of discrimination based on sexual orientation, primarily championed by the initial LGBT movement, which would eventually include an increased number of sexual orientation and gender identities, would gain international attention and recognition during the 1990s. As the Cold War concluded, the Soviet Union dissolved and a new world order was formed, international organisations could invest time and effort into advocating for the rights of individuals who belonged to minority sexual orientation groups.

As governments and experts united to settle affairs related to limiting discrimination based on sexual orientation, they quickly discovered that restructuring fundamental human rights was not required. What was deemed important was the proper understanding and imposition of existing ones. Therefore, governments began offering recognition and rights for same-sex couples, while international medical organisations declassified homosexuality, along with other sexual orientations, as a mental disorder, redefining the scientific beliefs behind Sexual Orientation and Gender Identity (SOGI).

However, as discrimination based on sexual orientation still persists, the topic of preventing it needs to be discussed, as part of a more specialised approach to our conference's theme, "Equity in an Uneducated World". For if the world is not educated about the hazards of discrimination based on sexual orientation, the issue will not only persist but also spread, as our world is plagued by hateful rhetoric and harmful ideology. Such is why it is of utmost importance that such topics are discussed in forums such as the Human Rights Council, as, although they offer significant social, economic and medical insights, they concern the deterioration of fundamental human rights, a concern that the United Nations must not overlook. A modern approach to this pressing matter is required if the international community is to resolve it.

Key Terms and Definitions

Human Rights

"Rights inherent to all human beings, regardless of race, sex, nationality, ethnicity, language, religion, or any other status. [...] Everyone is entitled to these rights, without discrimination".[2]

Minority Group

"A category of people within a society or organisation who, regardless of their numbers, experience a relative disadvantage compared to the majority group. This disadvantage may be seen in areas such as power, status, access to resources, or representation".[3]

Queerness

The "quality or fact of not fitting society's traditional ideas about gender or sexuality".[4]

Heterosexuality

Sexual interest in and attraction to members of one's opposite sex. This is the official term for this sexual orientation and words such as "straight" or any other informal terminology, should be avoided in a formal setting.

Homosexuality

"Sexual interest in and attraction to members of one's own sex".[5] This is the official term for this sexual orientation and words such as "gay", "lesbianism/lesbian" or any other informal terminology, should be avoided in a formal setting.

LGBTQ Community

"A group of persons in any country, region, or locality who identify as lesbian, gay, bisexual, transgender, or queer".[6]

Sexual Orientation (SO)

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[2] United Nations. (2023). Human rights. In United Nations. United Nations. https://www.un.org/en/global-issues/human-rights

[3] Oxford Review Editors. (2025). Minority group - definition and explanation. In The Oxford Review - OR Briefings. https://oxford-review.com/the-oxford-review-dei-diversity-equity-and-inclusion-dictionary/minority-group-definition-and-explanation/

[4] Cambridge Dictionary. (2025). Queerness. In @CambridgeWords. https://dictionary.cambridge.org/dictionary/english/queerness

[5] Britannica. (2018). Homosexuality | meaning, history, & facts. In Encyclopædia Britannica. https://www.britannica.com/topic/homosexuality

[6] Duignan, B. (2022, July 12). LGBTQ Community | Definition, Meaning, & Flag. Encyclopedia Britannica. https://www.britannica.com/topic/LGTBQ-community

"An inherent or immutable enduring emotional, romantic or sexual attraction to other people. [...] An individual's Sexual Orientation is independent of their gender identity".[7]

Gender Identity (GI)

"One's innermost concept of self as male, female, a blend of both or neither – how individuals perceive themselves and what they call themselves. One's gender identity can be the same or different from their sex assigned at birth".[8]

Discrimination

"The act, practice, or an instance of unfairly treating a person or group differently from other people or groups on a class or categorical basis (such as race, religion, gender, or sexual orientation) [...]".[9]

Stigma

"A set of negative and unfair beliefs that a society or group of people have about something".[10]

Taboo

A concept is considered "taboo" when it is "banned on grounds of morality or taste".[11]

UN Mandate of the Independent Expert

A system under which "the UN [...] selects independent experts and gives them a mandate to report and advise on specific human rights issues".[12] The Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity is the most recent addition to its operations that is relevant to the topic.

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[7] Human Rights Campaign. (2023). Sexual orientation and gender identity definitions. Human Rights Campaign. https://www.hrc.org/resources/sexual-orientation-and-gender-identity-terminology-and-definitions

[8] Human Rights Campaign. (2023). Sexual orientation and gender identity definitions. Human Rights Campaign. https://www.hrc.org/resources/sexual-orientation-and-gender-identity-terminology-and-definitions

[9] Merriam Webster. (2019). Definition of DISCRIMINATION. Merriam-Webster.Com. https://www.merriam-webster.com/dictionary/discrimination

[10] Merriam-Webster. (2018). Definition of STIGMA. Merriam-Webster.Com. https://www.merriam-webster.com/dictionary/stigma

[11] Merriam Webster. (2026, July 7). Definition of TABOO. Www.Merriam-Webster.Com. https://www.merriam-webster.com/dictionary/taboo

[12] US Government Accountability Office. (2025, February 6). United Nations: Information on independent human rights experts and their work. ReliefWeb. https://reliefweb.int/report/world/united-nations-information-independent-human-rights-experts-and-their-work

Background Information

Sociocultural Background

Historical Context

Following the conclusion of WWs I and II, conservative behaviour and politics, as well as the revival of traditional roles, reinstated women in domestic roles and rejected non-traditional sexual orientations and gender identities. However, this renewed discrimination produced a strong feminist movement during the 1960s, after the post-WWII climate and the Cold War had stabilised, signaling that a favourable time to introduce new ideas and changes to the existing world order had arrived. Such advances motivated members of the early LGBT, then simplified to lesbian, gay, bisexual, three sexual orientations, and transgender, one gender identity, movement, which would later champion the cause of the rights of minority SOGI groups, to respond to the discrimination that they were also facing.

On June 28th, 1969, obscure "cross-dressing" laws, suggesting that men and women should wear specific types of clothing related to the gender of their state-issued identification papers, triggered tensions in a bar named "Stonewall Inn", in Manhattan, New York City. Police attempted to raid the establishment in order to arrest transgender and non-gender-conforming individuals, as they had done before,[13] with patrons, however, exhibiting unexpected resistance. The exact reason for such a reaction is a topic of debate among historians,[14] but the general consensus is that the police clashed with the bar patrons that they were trying to arrest, resulting in what is considered the first Pride Parade in recorded history. A year later, on June 28th 1970, the Gay Pride Liberation March would transpire throughout New York, with demonstrators marching up to Central Park, solidifying an important tradition and the first step of the cause for non-discrimination based on sexual orientation.

In the following years, the LGBT movement would not only grow to include other classifications, even ones not fully relevant to sexual orientation, such as Queer, Intersex, Aromantic, Asexual and Agender (LGBTQIA+), but also legitimise the concept of Pride Month, set for June annually, in 1999, by a proclamation of then President of the US Bill Clinton. These actions assisted in both the growth of the LGBT movement and the greater cause of promoting human rights for minority SOGI groups.

Institutional Involvement

Although most organisations and individuals involved in affairs related to SOGI and human rights believe that a restructuring of fundamental human rights is not required to conform to the appearance of an increasing number of minority SOGI groups, many suggest that what is instead required is

[13] Housman, P. (2022). The first pride was a riot: The origins of pride month. In American University. https://www.american.edu/cas/news/the-first-pride-was-a-riot.cfm

[14] Housman, P. (2022). The first pride was a riot: The origins of pride month. In American University. https://www.american.edu/cas/news/the-first-pride-was-a-riot.cfm

proper enforcement. Member States of the UN have coauthored and signed various treaties and agreements on the matter, including the Universal Declaration of Human Rights (UDHR - 1948)[15], and especially Articles 1 (on equality), 2 (on non-discrimination), 3 (on life), 16 (on marriage) and 19 (on freedom of opinion and expression), as well as the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), signed in 1979,[16] a treaty which serves as a constant reminder that fundamental human rights are to be exercised by all human beings, regardless of gender. Having agreed upon the aforementioned documents, the UN continues its commendable work of ensuring non-discrimination based on sexual orientation, suggesting new practices and producing modernised resolutions.

Other organisations involved, such as the Organisation of American States and the Council of Europe, have most recently made legal advances and set legal precedents on how discrimination based on sexual orientation should be addressed in legislation. State obligations, case law and protected status render these attempts more targeted than past ones, ensuring that discrimination can be countered directly, by modifying existing legislation and understanding its most major causes, in order to create an effective plan of action on mitigating the phenomenon.

Case Studies

Post-Apartheid South Africa

In 1994, South Africa redefined the concept of anti-discriminatory legislation, when it became the first country to include provisions about the prohibition of discrimination based on sexual orientation in history[17]. Such an advance presents an important example of when a state had the power to reshape the way its citizens perceived equality between people with different sexual orientations. Although the constitution mostly adopted such provisions in order to exhibit its post-apartheid and fully non-discriminatory character towards any behaviour, the legal precedent that was set by anti-sexual orientation discrimination clauses being enshrined in a country's constitution would cause a ripple effect and render them one of the most prominent human rights debates of the modern era.

Atala Riffo and Daughters v. Chile

In 2012, the overturning of the Atala Riffo and Daughters v. Chile case was bound to set a legal precedent regarding sexual orientation and gender identity in the American Convention on Human

[15] United Nations. (1948). Universal declaration of Human rights. In United Nations. https://www.un.org/en/about-us/universal-declaration-of-human-rights

[16] UN General Assembly. (1979, December 18). *Convention on the elimination of all forms of discrimination against Women*. United Nations. Ohchr. https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-elimination-all-forms-discrimination-against-women

[17] de Belaunde, A. (2022). LGBTIQ family recognition milestones since 1990: A comprehensive global timeline. Outright International. https://outrightinternational.org/insights/lgbtiq-family-recognition-milestones-1990-comprehensive-global-timeline

Rights.[18] As the Inter-American Court reexamined the case of the mother, Riffo, on reclaiming custody of her children and the Chilean Supreme Court's dismissal of the case due to her same-sex partner and cohabitant, it found that Chilean authorities had been discriminatory towards Riffo and her daughters, violating their Article 1 rights on discrimination. With the outcome of this case, SOGI principles were introduced as protected grounds in the American Convention of Human Rights, proving that legal precedent continues to create new, as well as clarify existing legislation, as courts assess this still largely unresolved issue.

Primary Causes

Legal Matters

When discussing the legal obstacles which cause discrimination based on sexual orientation, those refer to all branches of the government, but mostly the legislative and executive branches. With regard to the legislative branch, discriminatory laws regarding the freedom of expression and right to life of people belonging to minority SOGI groups are common in Less Economically Developed Countries (LEDCs) and in those operating with older, potentially outdated, legislation, such as the Sharia Law in the Middle East. Discriminatory laws from new governments, or those enshrined in the constitution and/or tied to traditional legal practice, are the factors that fundamentally affect how the legal system operates and defines how all branches will behave on the matter of discrimination based on sexual orientation.

With regard to the executive branch, discrimination can be noticed even if the legislative and judicial branches operate under standards of non-discrimination, as the executive is responsible for enforcing the laws of a state and penalising illicit activity and such processes may not always be transparent. Exhibiting bias towards people belonging to minority SOGI groups, or any other subjective and/or discriminatory behaviour, is commonly present among the ranks of security bodies, such as the army and police, which may not have received appropriate education and training on how to manage altercations with individuals that may have a different sexual orientation than what they usually encounter, resulting in accidental or intentional police misconduct, difficulty in recognising criminal acts, and planning an efficient course of action. Such irregularities in the way that the legislative and executive branches operate must be understood and limited in order for the international community to effectively combat discrimination based on sexual orientation among state officials.

Socioeconomic Perception

Differences and similarities in socioeconomic background and standing can greatly affect how individuals perceive minority sexual orientations. Religion is a common example, as most religions offer some form of guidance regarding sexual orientation, with most favouring traditional sexual orientation, with homosexuality being considered non-religious behaviour and/or unfavorable for

[18] Inter-American Court of Human Rights. (2012, February 24). *Atala Riffo and Daughters v Chile, 2012, series C no. 239 | human dignity trust*. Human Dignity Trust. https://www.humandignitytrust.org/resources/atala-riffo-and-daughters-v-chile-2012-series-c-no-239/

one's social standing, while offering little guidance on gender identity, as such concerns were limited at the time. Then, as religion is but a part of a person's social identity, factors such as political alignment and nationality, among others, may also cause support or fear of queerness, the state of questioning one's assigned gender identity and/or sexual orientation, showcasing how discrimination based on sexual orientation is a multifaceted issue.

People in LEDCs are more likely to be subjected to such influences. An unfavourable economy may lead to people not having the time to discover themselves and their sexual preferences, resulting in minority sexual orientations being less common and rare, isolated cases being treated as a non-traditionalist agenda that should be frowned upon. Such is the reality that many people face in LEDCs, creating the illusion that members of minority SOGI groups are "seeking attention" or "entitled", while they are exercising their fundamental human right to self-expression. This is commonly how major human rights violations occur, stemming from conservatism and a reluctance to assess new ways of thinking and practices.

Educational Obstacles

Educational irregularities in the syllabuses of subjects such as Biology and/or Sexual Education, including parents or guardians disagreeing on teaching and teachers being reluctant to address such concepts, may cause a significantly altered perception of minority SOGI groups. Adolescents and young adults, even those residing in More Economically Developed Countries (MEDCs), may have difficulty in understanding their own sexual orientation and gender identity but mostly that of others because of what they were or were not taught by the educational system. Avoiding discrimination based on sexual orientation is deeply rooted in the information that one has received throughout their lives, their ethical understanding of the matter, as well as their moral compass, with all of those primarily stemming from their education.

Impact to the International Community

Disagreements in Diplomacy

Although different states may be part of the United Nations and obliged to adhere to its decisions and standards for protecting and maintaining human dignity and rights, conflicting legislation may occur during diplomatic negotiations, causing parties to be unable to agree on which global issues require more attention and/or aid. As an example, when the Hungarian parliament restricted the right to freedom of assembly of people who plan assemblies that relate to the themes of homosexuality, sex change and divergence from sex assigned at birth[19], the annual Pride parade of 2025, which celebrates minority SOGI groups, still happened, drawing international attention to not only an event of resistance against bans on LGBTI+, but also a political protest against the Hungarian government and human rights advocacy. However, by including the LGBTI+ label, many governments disregarded

[19] De Groot, D. (2025). Hungary's ban on Pride. European Parliament: At A Glance. https://www.europarl.europa.eu/RegData/etudes/ATAG/2025/769565/EPRS_ATA(2025)769565_EN.pdf

this as an unimportant event and a shift away from traditional values, without commenting on Hungary's other restrictive policies.

Such disagreements in diplomacy, however, also commonly extend to conflict resolution as well. In modern conflicts, aid may be disrupted or delayed as governments' definitions of what is considered a human being may differ. President Trump of the United States is one of the global leaders who have amended military regulations to exclude transgender people from serving in the army, an Executive Order that he signed within the first days of taking office,[20] proving that discrimination based on sexual orientation is actively changing the rules of war. In future conflicts, analysts may observe such behaviour resulting in less aid for people belonging to minority SOGI groups, a major violation of human rights agreements on equality and the Geneva Conventions on civilian protection during conflict.

Institutional Progress

Although a majority of international organizations consider that a modification of the standards for protecting fundamental human rights is not required, considering that those belonging to minority SOGI groups should still be treated as human beings, institutional progress is still of significant assistance in resolving the issue. Apart from the documents, treaties and agreements that they have already brokered and/or backed, intergovernmental organizations (IGOs), such as the UN and EU, are currently envisioning their future actions to mitigate discriminatory practises based on sexual orientation, ensuring that the topic remains on the agenda as more pressing, yet of equal importance, matters are troubling the international community. Recommendations for increased transparency and equality in governance, such as the Council of Europe's Parliamentary Assembly Recommendation 1915,[21] and strategies for protecting the human rights of those being discriminated against based on their sexual orientation, such as the UN Secretariat's strategy on the Protection from Violence and Discrimination of Lesbian, Gay, Bisexual, Transgender, Intersex and Queer (LGBTIQ+) Persons, have been produced by such IGOs, shaping a future of non-discrimination for all.

Timeline of Events

Date	Description of Event

[20] A4TE Editors. (2025). Understanding trump's trans military ban | A4TE. In A4TE. https://transequality.org/resources/understanding-trumps-trans-military-ban

[21] Steering Committee for Human Rights. (2010, June 18). Parliamentary Recommendation 1915. Comments of the CDDH: 70Th Meeting. CDDH: 70th Meeting. https://rm.coe.int/CoERMPublicCommonSearchServices/DisplayDCTMContent?documentId=090000168046064c

15 December 1973	The American Psychiatric Association declassifies homosexuality as a mental disorder, beginning the struggle against discrimination.
17 May 1990	The World Health Organisation removes the mental illness classification of homosexuality, a new era for sexual inclusion.
27 April 1994	Post-apartheid South Africa becomes the first state to formally include non-discrimination based on sexual orientation in its constitution.
1990s-2000s	Various states, such as the State of Vermont, Denmark and Norway, begin providing legal recognition and rights for same-sex couples.
2000s-2010s	Various countries, including Ireland and Taiwan, begin legalising same-sex marriage through popular votes, bringing the world a step closer to complete sexual orientation non-discrimination.
21 June 2011	The first United Nations resolution mentioning sexual orientation and gender identity (SOGI) is adopted, with the matter now gaining UN recognition.
24 August 2015	The UN Security Council holds its first Arria Formula meeting on LGBT issues, recognising their importance in international security and peace processes.
15 July 2016	The Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity is adopted by the UN, ensuring scrutiny on SOGI-related grievances.
19 July 2019–7 July 2025	The Mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity is renewed multiple times, exhibiting its importance and perseverance through time.

Major Actors Involved

Iceland

Iceland is globally one of the most supportive countries towards sexual orientation and gender identity, with the majority of the public showing support for the LGBTQ+ community[22] and the country ranking first in international indexes with regard to equality[23], while also being the first to legalise same-sex marriage in 2010. Furthermore, the country has passed one of the most progressive pieces of legislation concerning the mitigation of elimination based on SOGI, namely the Act on Equal Status and Equal Rights Irrespective of Gender (Gender Equality Act),[24] which ensures the protection of minority SOGI groups. More specifically, the country has made advances in protecting their employment and pay opportunities, effectively ensuring equality in the labour market and reducing the existing wage gap. Iceland's remarkable advances in equality justify its ranking as the safest, and most accepting of those belonging to minority SOGI groups, state worldwide.[25]

Uruguay

Uruguay undoubtedly has the most impressive record regarding minority SOGI groups' rights and recognition, considered the safest country for members of such communities to live in in the South American continent. Same-sex activities have been legal since 1934 and anti-discrimination laws have existed and been amended as early as 2004, while the country also discontinued a law requiring surgery to legitimise a transgender person's gender identity in 2018. For all the aforementioned, Uruguay is ranked as the country most supportive of LGBT rights in South America, while also approaching the top international ranking in certain indexes.[26] A pioneer on the matter of non-discrimination based on sexual orientation and gender identity, Uruguay stands as one of the most important strongholds for such causes internationally.

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[22] Hansford, A. (2025, April 22). Tired of the US and the UK? These are the world's most progressive countries for LGBTQ+ people. PinkNews | Latest Lesbian, Gay, Bi and Trans News | LGBTQ+ News. https://www.thepinknews.com/2025/04/22/lgbtq-safe-countries-uruguay-malta-iceland-canada/#page/10

[23] Equaldex. (2023). LGBT Equality Index. Equaldex. https://www.equaldex.com/equality-index

[24] Act on Equal Status and Equal Rights Irrespective of Gender, (2021). https://www.government.is/library/?itemid=b708d654-9e96-11eb-8134-005056bc8c60

[25] Hansford, A. (2025, April 22). Tired of the US and the UK? These are the world's most progressive countries for LGBTQ+ people. PinkNews | Latest Lesbian, Gay, Bi and Trans News | LGBTQ+ News. https://www.thepinknews.com/2025/04/22/lgbtq-safe-countries-uruguay-malta-iceland-canada/#page/10

[26] Equaldex. (2023). LGBT Equality Index. Equaldex. https://www.equaldex.com/equality-index

Uganda

Uganda is certainly one of the most restrictive countries with regard to sexual orientation expression, especially that of homosexuality. Having passed the Anti-Homosexuality Act of 2023[27], Uganda has provided the appropriate authorities with specific instructions to target and punish public same-sex activity and expression, as well as activism in favour of it. The act officially criminalises specified conduct, including same-sex sexual activity, suggesting life imprisonment as the appropriate legal penalty in various cases, while the country has also been known to still use capital punishment as its highest form of legal sanctions. Prohibition, strict anti-equality agenda and heavily enforced discriminatory legislation render Uganda one of the most dangerous states for members of minority SOGI groups to reside in.

Saudi Arabia

Under Saudi Arabia's interpretation of Sharia Law, any sexual activities outside of marriage are strictly prohibited, effectively penalising any form of same-sex activities, as marriage is not an option for homosexual couples of either gender. Transgender individuals also face challenges, as state-specific dress codes may conflict with their gender identity and compromise their fundamental right to freedom of expression. Furthermore, penalties considered for any of the above offenses include capital punishment, which, apart from being imposed by state courts in general, is also the highest form of punishment for homosexual behaviour. An unfavorable political climate, strict dress codes and public expression laws, as well as the death penalty as the last resort, place Saudi Arabia very low in the international equality rankings, avoided by those who value the freedom of expressing their sexual orientation.

Council of Europe (CoE)

The Council of Europe's approach to SOGI-related discrimination has been mostly defined by Case Law (setting legal precedent on a matter upon the conclusion of a trial) of the European Court of Human Rights (ECHR). The ECHR's rulings on various grievances regarding discrimination based on sexual orientation are a clear representation of the Council of Europe's anti-discriminatory stance, while its measures, such as the Parliamentary Assembly Recommendation 1915, prove that initiative within the council exists for Europe to unite its legislation against any form of discrimination based on sexual orientation. The European Union's organ's actions and modernisation of legislature are a strong indication that EU member states will remain united in the cause for SOGI equality.

Human Rights Watch (HRW)

Human Rights Watch is one of the most prominent non-governmental organisations (NGOs) in the cause for non-discrimination based on sexual orientation, mainly through indirect support and reports on human rights violations. By advocating for issues online and starting social media

[27] Parliament of the Republic of Uganda. (2023, May 26). The Anti-Homosexuality Act. https://www.parliament.go.ug/sites/default/files/The%20Anti-Homosexuality%20Act%2C%202023.pdf

campaigns, HRW remains present in all struggles which are related to the fundamental human rights of vulnerable and/or minority groups. Furthermore, the HRW is currently running its #SecureOurSocials campaign, aiming to protect LGBT+ community members against being targeted and facing severe online consequences, including cyberbullying. Through such active advocacy, the HRW remains a firm supporter of equality among human beings, in order for all to be able to exercise their basic human rights.

International Lesbian, Gay, Trans and Intersex Association (ILGA)

The ILGA has been operating in the field of protecting the rights of primarily LGBTI community members since 1978, with important advances in educating the international community about the importance of equality among people with different sexual orientations. This NGO regularly organises activities and events, including multilateral discussions, as well as annual reports on initiatives around the world which support the LGBTI community. With various branches around the world, including one in each continent, the ILGA ensures that as many people as possible receive appropriate education regarding SOGI diversity and have access to activities and ventures which promote it.

UN Documents and International Agreements

Human Rights Council Resolution 32/2 (2014-2025)[28]

Resolution 32/2, after reaffirming the stance of the UN against discrimination based on sexual orientation and gender identity in the preambulatory clauses, proposes the creation of a Mandate of the Independent Expert on protection against discrimination and violence based on sexual orientation and gender identity. This is considered one of the first key steps of the UN's cause against discrimination, as the mandate would later become the most significant point of reference of the organisation regarding matters of discrimination based on SOGI. Noting its importance in modern times, this Mandate of the Independent Expert has been renewed on three occasions, each three years apart, through Human Rights Council resolutions 41/18 (2019),[29] 50/10 (2022),[30] 59/5 (2025).[31]

Human Rights Council Resolution 40/5 (2019)[32]

Although this resolution specifically advocates for the elimination of discrimination against women and girls in sport, it sets strong standards and reminds Member States about their commitments to

[28] UN Human Rights Council. (2016, June 30). Resolution 32/2. Un.Org. https://docs.un.org/en/a/hrc/res/32/2

[29] UN Human Rights Council. (2019a, July 19). Resolution 41/18. Un.Org. https://docs.un.org/en/a/hrc/res/41/18

[30] UN Human Rights Council. (2022). Resolution 50/10. In Un.org. https://docs.un.org/en/A/HRC/RES/50/10

[31] UN Human Rights Council. (2025). Resolution 59/5. In Un.org. https://docs.un.org/en/A/HRC/RES/59/5

[32] UN Human Rights Council. (2019, March 21). Resolution 40/5. Un.Org. https://docs.un.org/en/A/HRC/RES/40/5

upholding human rights regarding SOGI equality. Resolution 40/5 discusses themes such as bodily integrity and upholding international human rights and norms at all times during the participation of women and girls in sport, including not subjecting them to any humiliating and/or inappropriate acts. The Human Rights Council may choose to focus on the themes of the female gender and sport but the resolution at hand creates a precedent for future discussions about SOGI-related discrimination regardless.

Human Rights Council Resolution 55/14 (2024)[33]

This resolution focuses primarily on researching discriminatory practices against intersex people around the world, as well as providing the public with information about them. Moreover, the Human Rights Council proposes the creation of a special panel during its sixtieth session, open to Member States and other relevant bodies, among others, where discussions could transpire regarding international discriminatory laws, provided research about them, as well as the challenges that "persons with innate variations to sex characteristics"[34] may be facing. Unlike previous resolutions which propose general advisory and long-term solutions, Resolution 55/14 seeks immediate results through research and fruitful discussions upon them, showcasing the direct approach that should exist when handling SOGI-related discriminatory practices.

UN Secretariat LGBTIQ+ Strategy (2024)[35]

In its future strategy for supporting the LGBTIQ+ community, the United Nations Secretariat showcases its scope and main targets for the projects, including the consideration of the settlement of SOGI discrimination-related grievances as important to ensuring international peace and security, as well as ensuring that all human beings are treated with dignity, regardless of their sexual orientation and gender identity. The Secretariat also suggests a few methods through which these goals can be achieved, including promoting inclusive organisational structures, ensuring safety and security for vulnerable and minority SOGI groups, as well as amending the UN's agenda and programmes for such matters to be included in the discussions of different committees. By proposing the creation of new Steering Groups and securing the assistance of the High Commissioner for Human Rights, the Secretariat ensures that necessary oversight will exist over these efforts, maximising their chances of success. Overall, the UN Secretariat offers a balanced and well-rounded approach to the topic of

[33] UN Human Rights Council. (2024, April 4). Resolution 55/14. Un.Org. https://docs.un.org/en/A/HRC/RES/55/14

[34] UN Human Rights Council. (2024, April 4). Resolution 55/14. Un.Org. https://docs.un.org/en/A/HRC/RES/55/14

[35] UN Secretariat. (2024). UN SECRETARIAT STRATEGY ON PROTECTION FROM VIOLENCE AND DISCRIMINATION OF LGBTIQ+ PERSONS [Review of UN SECRETARIAT STRATEGY ON PROTECTION FROM VIOLENCE AND DISCRIMINATION OF LGBTIQ+ PERSONS]. https://www.un.org/sites/un2.un.org/files/un-secretariat-lgbtiq-strategy.pdf

protecting the LGBTIQ+ community from violence and discrimination, ensuring a better future for affected persons.

Previous Attempts to Solve the Issue

Yogyakarta Principles (YPs)[36] and Yogyakarta Principles Plus 10 (YPs+10)[37] (2006, 2017)

Description

The Yogyakarta Principles were a series of directives and recommendations which were agreed upon by 29 experts from 25 countries in a four-day meeting in Indonesia, setting the fundamentals for the future of non-discrimination and universal equality. They included provisions about access to basic human rights, recognition and protection before the law, as well as sanitation, among others.

Reasons for Failure

Although the Yogyakarta Principles offer important guidance when navigating SOGI-related grievances and drafting new treaties, they were the product of an English-dominated discussion among a group of experts, originating from 25 countries, a small number when compared to the membership of some international organisations. These facts render this attempt non-universal and without significant backing from the international community.

Improvement Potential

Instead of the release of YP+10 eleven years later, the experts of the YPs could have scheduled an advisory follow-up session, inviting regional and international intergovernmental organisations (IGOs) to discuss, amend and possibly further legitimise the principles. Reaching out to well-established organisations and suggesting modern, yet feasible, solutions is the first step to creating new legislation from a soft-law initiative.

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[36] Alston, P., Anmeghichean, M., Cabral, M., Cameron, E., Corrêa, S. O., Ertürk, Y., Evatt, E., Hunt, P., Jahangir, A., Kiai, M., Kothari, M., Mesquita, J., Miller, A. M., Monageng, S. M., Muntarbhorn, V., Mute, L., Nowak, M., Mendoza, A. E. O., O'Flaherty, M., … Wintemute, R. (2006, November 9). The Yogyakarta Principles on the Application of International Human Rights Law in Relation to Sexual Orientation and Gender Identity. https://www.icj.org/wp-content/uploads/2012/08/Yogyakarta-Principles-publication-2007-eng.pdf

[37] Alston, P., Brands, I. K., Brown, D., Cabral Grinspan, M., Cameron, E., Carpenter, M., Chandrakirana, K., Corrêa, S. O., Dillane, P., Ehrt, J., Kara, S., Kaye, D., Kiai, M., Kismodi, E., Lamm, E., Madrigal-Borloz, V., Mbaru, M., Monageng, S. M., Muntarbhorn, V., … Zieselman, K. (2017). ADDITIONAL PRINCIPLES AND STATE OBLIGATIONS ON THE APPLICATION OF INTERNATIONAL HUMAN RIGHTS LAW IN RELATION TO SEXUAL ORIENTATION, GENDER IDENTITY, GENDER EXPRESSION AND SEX CHARACTERISTICS TO COMPLEMENT THE YOGYAKARTA PRINCIPLES THE YOGYAKARTA PRINCIPLES plus 10 [Review of ADDITIONAL PRINCIPLES AND STATE OBLIGATIONS ON THE APPLICATION OF INTERNATIONAL HUMAN RIGHTS LAW IN RELATION TO SEXUAL ORIENTATION, GENDER IDENTITY, GENDER EXPRESSION AND SEX CHARACTERISTICS TO COMPLEMENT THE YOGYAKARTA PRINCIPLES THE YOGYAKARTA PRINCIPLES plus 10]. https://yogyakartaprinciples.org/wp-content/uploads/2017/11/A5_yogyakartaWEB-2.pdf

The Council of Europe's Parliamentary Assembly Recommendation 1915 (2010)[38]

Description

Parliamentary Assembly Recommendation 1915 is a document created by the Steering Committee for Human Rights (Comité Directeur des Droits Humains, CDDH) of the Council of Europe. It promotes legislative unification against discrimination based on sexual orientation and gender identity and is a part of the CDDH's work on improving international human rights standards, primarily focusing on SOGI-related affairs in this instance.

Reasons for Failure

Although the recommendation makes remarkable advances in ensuring that all states have access to legislative suggestions by the EU, these documents remain reliant on the compliance of the EU's member states. With consistent implementation and enforcement lacking, even in countries that have attempted to implement such laws, the EU's recommendations have difficulty in developing beyond the stage of a progressive, new concept.

Improvement Potential

The gap between legal commitment and actual practice could be reduced by introducing periodic reviews, potential sanctions, including accession and funding, as well as constant monitoring. Furthermore, with regard to improving the solutions suggested, the structural issues which cause inequality could be targeted as well, including lack of education, policing and migration, ensuring a fairer European society.

Inter-American Court of Human Rights OC-24/17 Advisory Opinion[39]

Description

The OC-24/17 advisory opinion is a comprehensive document composed by the Inter-American Court of Human Rights. It aims to entrench non-discrimination based on sexual orientation in the American Convention on Human Rights, an important step towards the recognition of the rights of the LGBTI+ community in the Americas.

Reasons for Failure

The Americas are a culturally and politically diverse ecosystem which has been defined by the rise of the United States and, later, changing Cold War dynamics. Such is why the political will to implement

[38] Steering Committee for Human Rights. (2010, June 18). Parliamentary Recommendation 1915. Comments of the CDDH: 70Th Meeting. CDDH: 70th Meeting. https://rm.coe.int/CoERMPublicCommonSearchServices/DisplayDCTMContent?documentId=090000168046064c

[39] da Rocha, M. (2017). The Inter-American Court of Human Rights calls for the recognition and protection of LGBTI rights - Human Rights Law Centre [Review of The Inter-American Court of Human Rights calls for the recognition and protection of LGBTI rights - Human Rights Law Centre]. Human Rights Law Centre. https://www.hrlc.org.au/case-summaries/2018-5-14-the-inter-american-court-of-human-rights-calls-for-the-recognition-and-protection-of-lgbti-rights/

the OC-24/17 advisory opinion is not universal in the region, as some states have begun to consider that the advances of the court may be intrusive and/or culturally inappropriate. This attempt primarily relies on the willingness of the states involved to implement it and their tolerance of it.

Improvement Potential

Coupling advisory opinions with a detailed plan on implementation, enforcement and monitoring, potentially with input from relevant bodies of regional IGOs, such as the Organisation of American States (OAS), could prove an effective method in combatting concerns. Furthermore, support from local religious leaders, national courts and parliaments could assist in avoiding misunderstandings about the rationale of controversial advisory opinions.

Possible Solutions

State-specific SOGI Protocols

The Yogyakarta Principles and the Council of Europe's Parliamentary Assembly Recommendation are only two of the numerous soft-law documents and recommendations about discrimination based on sexual orientation and gender identity to states, which have been produced by recognised international organisations and forums over the years, yielding few results and progress regarding mitigating the phenomenon. However, if states moved to adopt these soft-law initiatives and incorporate them into their own legal systems, efforts to unify legislation on the matter would begin all over the world and eventually lead to states which may have been hesitant in the past conforming to the standards of the international community and forming an international movement for limiting discrimination. This could become one of the most significant attempts to instate anti-discrimination laws regarding sexual orientation and gender identity and even unify them with the assistance of regional organisations.

Harmful Practice "Deimplementation"

Although the beliefs of the international community on sexual orientation and gender identity have evolved, harmful practices persist in certain regions and states, contrary to the progress shown in others. Such is why UN task forces could be created and dispatched to such locations in order to promote the advantages of "deimplementing" said discriminatory practices based on SOGI. These task forces will be instructed to provide educational material, review existing legislation on SOGI and provide constructive feedback, as well as receive feedback from people that have been affected by SOGI-related harmful practices. By following these steps, the UN will be able to consider the best course of action for each government to limit their harmful practices and possibly increase their popularity in the process. As communities which find common ground in their minority sexual orientations, recognition and rights are not only a benefit for them but also for the greater societal environment that they are a part of, allowing them to contribute meaningfully to its daily affairs as legally recognised and accepted citizens.

Intersectional Equality Boards

National (e.g., governments) and/or regional organisations (e.g., the EU, the OAS) could form their own equality and/or non-discrimination boards in order to promote SOGI equality with specific strategies and standards, which may differ in each region. These boards could consist of human rights specialists, community leaders, as well as individuals who are already operating such initiatives in the region. This attempt would centralise efforts to combat discrimination based on SOGI and unite people with knowledge on the topic from different backgrounds and cultures in the process. These boards could then propose measures and closely cooperate with local governments in implementing them, while also maintaining contact with the public through actions and outreach efforts.

Further reading

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Yogyakarta Principles | ICJ

United Nations Resolutions on sexual orientation, gender identity and sex characteristics | OHCHR

LGBT Rights by Country 2026

For understanding:

LGBTIQ Family Recognition Milestones Since 1990: A Comprehensive Global Timeline | Outright International

Sexual Orientation and Human Rights

Map of Jurisdictions that Criminalise LGBT People | Human Dignity Trust

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